

Balvinder Kour vs Gurdev Singh on 21 September, 2022

Author: Rahul Bharti

Bench: Rahul Bharti

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

Cr. No. 9/2018

Balvinder Kour

.....Petitioner

Through: Mr. P.S. Pawar, Advocate.

Vs

Gurdev Singh

..... Respondent(s)

Through: None.

Coram: HON'BLE MR. JUSTICE RAHUL BHARTI, JUDGE
JUDGMENT

21.09.2022

1. Heard the learned counsel for the petitioner.

2. The respondent herein has filed a civil suit against the petitioner herein which is diarized on file no. 263/Civil suit of the Court of learned Sub Registrar (Munsiff), Jammu. The suit has been instituted on 15.10.2016. In the said civil suit, the respondent is seeking the relief which is reproduced as under:

"Civil Original Suit for declaration whereby declaring the alleged/so called marriage of the plaintiff with the defendant on 10.03.2006 as illegal, inoperative and nonest in the eyes of law along with the certificate of marriage dated 02.04.2006 issued by Arya Samaj, Dayanand Marg, Jammu and marriage agreement dated 10.03.2006 and agreement and affidavits executed between the parties."

3. The petitioner herein, upon her appearance as defendant in the suit, came to file an application under Order VII Rule 11 (d) of the Jammu and Kashmir Code of Civil Procedure Svt. 1977 seeking rejection of the plaint. In maintaining this application, the petitioner referred to sections 11, 12, 13 and 15 read with Section 21 of the Hindu Marriage Act, 1955 to say that the Civil Court of learned Munsiff Jammu was lacking jurisdiction under Section 9 of the Code of Civil Procedure, Svt. 1977 to

try the said suit.

4. This application of the petitioner came to be rejected by the trial Court of learned Munsiff, Jammu vide an order dated 12.01.2018 which is impugned in the present revision petition.

5. The elementary principle on which a plaint can be rejected by resort to Order VII Rule 11 (d) of the Code of Civil Procedure, Svt. 1977 is that the plaint is to be accepted as it is without any element of editing so as to generate a conclusion for the notice of the civil suit that the plaint so filed in the suit is a one which deserves to be rejected on its own showing.

6. Keeping in view the aforesaid principle, this Court when examines the plaint filed in the civil suit, is confronted with the fact that the respondent has set up a fact, whether true or false is a subject matter of proof that there is no marriage between him and the respondent and the documents being used by the respondent to claim the marriage as being marriage agreement dated 10.03.2006 and a marriage certificate issued by Arya Samaj Mandir, Jammu dated 2.4.2006 are products of fraud/misrepresentation with an objective to harass the petitioner/respondent herein.

7. The tone and tenor of the plaint is that the respondent, as the plaintiff, in no manner is admitting, directly or indirectly, to have ever entered into any marriage with the petitioner so as to result in solemnization of a marriage between the two. The suit of the respondent (plaintiff) is with respect to the two documents referred above whereas the premise on which the petitioner (defendant) sought rejection of the plaint is that the marriage has taken place which is being evidenced by the said two documents and as such, the jurisdiction to deal with marriage of the petitioner with the respondent is not vesting in the Civil Court. Thus, it is by self-serving spin of judgment at her own end that the petitioner (defendant) desired the trial court to hit the suit of the respondent (plaintiff).

8. A perusal of the plaint would bear this fact out that nowhere in the plaint, it has been said/averred that the respondent (plaintiff) ever entered into any ceremony for solemnization of marriage amounting to marriage under Hindu Law. This frame of the plaint cannot be disturbed and given an edited version by the defendant/petitioner herein to say as is being said in the present petition that she and the respondent are legally husband and wife as their marriage was solemnized under Hindu Rites and Customs on 02.04.2006 in Arya Samaj Mandir, Jammu. This is a statement on fact from the petitioner's end and not at all from the respondent's end in this case and as such, the plaint was not to be rejected at the asking of the petitioner and the order passed by the trial court is correct both on facts as well as law.

9. The present petition is misconceived, hence dismissed.

(Rahul Bharti) Judge JAMMU 21.09.2022 NARESH